

**GOVERNMENT OF INDIA
MINISTRY OF RAILWAYS
(RAILWAY BOARD)**

No.ERB-I/2024/14/36

New, Delhi, dated: 06.11.2025

ORDER

The Hon'ble Central Administrative Tribunal/New Delhi vide its judgement dated 31.05.2016 in O.A. No. 591/2009 (in the matter of Shri N.K. Sharma & others Vs UOI) and O.A. No. 2981/2009 (in the matter of Shri Manoj Kumar & others Vs UOI) [both involving the seniority issue between Direct Recruit Section officers and Promotee Section Officers of Railway Board Secretariat Service(RBSS)] has quashed and set aside the inter-se Seniority list of Section Officers' Grade of RBSS issued in 2008 and directed this Ministry to recast a fresh year-wise Seniority lists of Section Officers from 1970 onwards, taking into account the principles deliberated in their order.

2. In para 182 (vi) of its order dated 31.05.2016, Hon'ble CAT has also directed as under:-

"The Respondent No.1 shall, after finalization of the SOs' level Seniority List, convene DPCs or Review DPCs, for considering year-wise further promotions of all the incumbent SOs in that seniority list as Under Secretaries and Deputy Secretaries etc., and so on."

3. In compliance of Hon'ble CAT, New Delhi's judgement dated 31.05.2016 in O.A. No.591/2009 & O.A. No.2981 of 2009, the Seniority List of Section Officer's Grade of Railway Board Secretariat Service (RBSS) was revised from 1970 onwards and thereafter, the panels of Grade-I(Deputy Director/Under Secretary) of Railway Board Secretariat Service (RBSS) for the vacancy years 1980-81 to 2010-11 [i.e. the year upto which regular panels of Grade-I(US/DD) of RBSS were earlier framed in consultation with UPSC] were reviewed in consultation with UPSC and issued vide Board's Office Order No. 50 of 2024 dated 05.08.2024. And, based on these revised panels of Grade-I(Deputy Director/Under Secretary), the panels for promotion to Selection Grade (Deputy Secretary/Joint Director) upto the year 2013-14, Senior Selection Grade (Director) upto panel year 2016-17 and Senior Administrative Grade upto the year 2023-24 were reviewed/framed and issued vide Board's order of even number dated 14.10.2024.

4. Subsequently, Grade-I (Deputy Director/Under Secretary) panels of Railway Board Secretariat Service (RBSS) for the vacancy years 2011-12 and 2012-13 were framed in consultation with UPSC and issued vide Board's Office Order No. 14 of 2025 dated 29.01.2025.

5. Based on the abovementioned Grade-I(Deputy Director) panels of RBSS, panels for promotion to Selection Grade (Deputy Secretary/Joint Director) and Senior Selection Grade (Director) of RBSS, have been reviewed/ framed afresh and the Competent Authority has approved the empanelment/promotion of following officers of RBSS to Selection Grade (Deputy Secretary/Joint Director) and Senior Selection Grade (Director) of RBSS w.e.f. the dates mentioned against their names:-

S. No.	Name (S/Shri/Ms.)	D.O.B.	Deputy Secretary	Director
1.	H.B. Pandey	15.04.78	01.07.14	01.07.17
2.	R.V. Nair	05.11.56	01.07.14	-
3.	R.S. Nain	10.01.57	01.07.14	-
4.	Manju	09.02.63	01.07.14	01.07.17
5.	Ajay Upadhyay	20.11.59	01.07.15	01.07.18
6.	R.P. Meena (ST)	30.08.59	01.07.15	01.07.18
7.	M.K. Panda	16.08.61	01.07.15	-
8.	S. Kameswar	02.07.56	01.07.15	-

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S. No.	Name (S/Shri/Ms.)	D.O.B.	Deputy Secretary	Director
9.	S. Acharya	11.08.57	01.07.15	-
10.	Aruna Jain	01.04.61	01.07.15	01.07.18
11.	J.M.S. Rawat	07.09.57	01.07.15	-
12.	H.R. Sharma	10.07.55	01.07.15	-
13.	Vaidehi Gopal	02.08.56	01.07.15	-
14.	R.D. Phatak	15.06.63	01.07.15	01.07.18
15.	Anil Chopra	17.10.60	01.07.15	01.07.18
16.	Rajini Makkar	01.11.65	01.07.15	01.07.18
17.	Suvamoy Pal	09.11.57	01.07.15	-
18.	Debasish Sikdar	16.01.60	01.07.15	01.07.18
19.	Ravinder Pandey	20.03.66	01.07.15	01.07.18
20.	Kajal Mukherjee	03.10.56	01.07.15	-
21.	Anil Wason	08.04.60	01.07.15	01.04.19
22.	Rakesh Kumar Sinha	16.01.63	01.07.15	01.06.19
23.	Madan Mohan Rai	01.07.62	01.07.15	01.08.19
24.	A.V.S. Rao	15.06.61	01.07.15	01.09.19
25.	Ram Shankar Shukla	31.10.61	01.07.15	01.09.19
26.	Sunil Bhardwaj	05.01.64	01.07.15	01.11.19
27.	Vidya Dhar Sharma	11.01.65	01.07.15	01.12.19
28.	M. Anand Krishna	22.03.60	01.07.15	01.02.20
29.	Marut Kumar	30.07.59	01.07.15	-
30.	S.R. Kanaujia (SC)	11.02.61	01.07.15	01.04.20
31.	P.C. Verma (SC)	03.02.62	01.07.15	01.05.20
32.	Anshu Mallik	16.12.65	01.07.15	03.06.20
33.	Rajesh Kumar	11.07.63	01.07.15	01.11.20
34.	B. Rath	20.02.63	01.07.15	01.03.21
35.	Praveen Kumar	30.12.63	01.07.15	01.03.21
36.	Harish Chander	21.02.66	01.07.15	01.04.21
37.	Sayed Hasan	21.11.55	01.07.15	-
38.	Shakuntala Gupta	10.08.63	01.07.15	01.05.21
39.	Vinay Kumar	15.11.64	01.07.15	18.05.21
40.	Subrata Banerjee	03.02.58	01.07.15	-
41.	Randhir Singh (SC)	19.07.56	01.07.15	-
42.	Sanjay Gauri	05.07.67	01.08.15	18.05.21
43.	Padma Sharma	24.12.59	01.08.15	-
44.	Ajay Jha	10.08.66	01.12.15	01.07.21
45.	D. Joseph	21.08.63	01.12.15	10.08.21
46.	Rajni Chadda	23.09.58	01.07.17	-
47.	R.P. Joshi	07.02.66	01.07.17	01.07.22
48.	R.K. Shah	19.09.60	01.07.17	-
49.	A.C. Jain	14.05.66	01.07.17	01.07.22
50.	U.N. Mehta (SC)	27.11.62	01.07.17	-
51.	Prabir Roy	30.04.64	01.07.17	01.07.22
52.	Bihari Lal (SC)	15.05.63	01.07.17	01.07.22
53.	Amitabh Joshi	06.07.65	01.07.17	-
54.	Sanjay Manocha	17.07.67	01.07.17	06.07.22
55.	Ashok Kumar (SC)	25.09.61	01.08.17	-
56.	H.K. Sanhotra	02.10.63	01.09.17	22.12.22
57.	N.P. Singh	10.05.63	01.10.17	22.12.22
58.	U.K. Tiwari	15.10.67	01.11.17	01.01.23
59.	Chotte Lal (SC)	06.07.65	01.12.17	01.02.23

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S. No.	Name (S/Shri/Ms.)	D.O.B.	Deputy Secretary	Director
60.	S.C. Krishna	29.08.66	28.12.17	01.02.23
61.	Vijay Kumar (SC)	09.02.66	01.02.18	01.03.23
62.	Sailendra Kr. Sharma	08.01.65	01.03.18	01.06.23
63.	Sonali Chaturvedi	15.06.65	01.03.18	01.06.23
64.	Janardan Ojha	10.03.64	20.04.18	01.07.23
65.	R.C. Pandey	24.01.63	01.04.19	-
66.	Md. Salim Ahmed	05.07.64	20.05.19	01.07.23
67.	Peeyush Kapasi	17.11.68	01.08.19	01.08.23
68.	A.V.K.M. Rao (SC)	09.08.62	01.08.19	-
69.	K.S. Tiria (ST)	06.06.66	01.09.19	01.09.23
70.	David Daimari (ST)	30.09.64	01.09.19	01.09.23
71.	P.M. Meena (ST)	05.08.68	01.11.19	01.09.23
72.	Nirmala Usha Tirkey (ST)	13.10.68	01.12.19	01.11.23
73.	Uma Subramaniam	06.10.64	01.01.20	01.04.24
74.	Pradip Kundu	22.02.64	01.02.20	-
75.	Manish Mathur	14.05.71	29.02.20	01.08.24
76.	N.C. Jain	01.04.67	01.04.20	14.08.24
77.	Sushil Kumar Singh	05.06.69	01.05.20	01.10.24
78.	Dibya Singh Parida	27.01.63	03.06.20	-
79.	Mahesh Kr Meena (ST)	02.11.69	01.10.20	01.11.24
80.	Neeraj Kumar Singh (ST)	21.04.66	01.11.20	01.12.24
81.	Priya Gopalakrishnan	02.07.70	01.03.21	01.02.25
82.	Ashok Kumar Yadav	05.12.65	01.03.21	01.02.25
83.	Shailendra Modi	24.05.71	01.04.21	-
84.	Pankaj Chawla	16.12.69	27.04.21	01.07.25
85.	Shyamal Kumar Nandi	08.08.63	01.05.21	-
86.	C.K. Vinod	29.08.76	01.07.21	01.08.25
87.	Gurpreet Singh (SC)	03.02.72	10.08.21	To be promoted against the anticipated vacancies for the panel year 2025-26 except officers at S No 88, 92 and 94.
88.	Rajesh Kumar Premi (SC)	03.01.62	01.09.21	
89.	Alice R Tirkey (ST)	07.09.74	01.10.21	
90.	Nishith Lucas Tigga (ST)	07.08.72	09.10.21	
91.	Adesh Kumar (SC)	02.11.70	01.11.21	
92.	B.K. Panda	10.02.65	01.02.22	
93.	Tejendra Singh	18.01.68	01.03.22	
94.	A.K. Das	27.05.65	01.03.22	
95.	Gomathi Shankar	31.08.70	01.07.22	
96.	Sanjay Kumar Jha	16.12.67	06.07.22	-

6. The competent authority while approving the recommendations of DPC has also approved the following:

"....The change in the seniority position of Section Officers in RBSS, as per the seniority list dated 29.08.2017 issued in compliance with the Hon'ble CAT's judgment, has rendered all regular promotions of Under Secretaries and above in RBSS from 1980 onwards erroneous and inoperative. The present Review DPC regularizes the promotion of eligible officers to the grades of Deputy Secretary and Director of RBSS. As a result, some officers are recommended for promotion to higher grades from dates earlier than when they shouldered higher responsibilities, while others are recommended for promotion from later dates than their actual earlier promotion. Paragraph 183 of the Hon'ble CAT's judgment dated 31.05.2016 clarifies that:-

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"If any individual has fortuitously enjoyed higher emoluments due to erroneous promotions granted earlier than due, no recoveries of excess salary or emoluments already disbursed will be made."

Further, for officers recommended for promotion to higher grades from dates earlier than when they shouldered higher responsibilities, reliance is placed on paragraph 228 of Indian Railway Establishment Manual (IREM) Volume-I, which inter alia states as under:

"...(ii) Where a person has been promoted but not on the date from which he would have been promoted but for the administrative error.

Each such case should be dealt with on its merits. The staff who have lost promotion on account of administrative error should on promotion be assigned correct seniority vis-a-vis their juniors already promoted, irrespective of the date of promotion. Pay in the higher grade on promotion may be fixed proforma at the proper time. The enhanced pay may be allowed from the date of actual promotion. No arrears on this account shall be payable as he did not actually shoulder the duties and responsibilities of the higher posts...."

7. Accordingly, in such cases of officers covered under Rule 228 of IREM Vol.-I mentioned above, the pay should be fixed on proforma basis and the enhanced pay was to be allowed from the date of actual promotion and no arrears on this account was to be paid for the past period as he did not actually perform duties and responsibilities of the higher post. This has also been upheld by the Hon'ble Supreme Court in its rulings dated 13.08.1997 (Civil Appeal No.8904/1994) and 21.09.2006 (Civil Appeal No.4222/2006 arising out of SLP(C) No. 23021/2005).

8. The officers, whose regular promotions have been ordered in para- 5 above, may exercise their option for pay fixation under saving clause of Rule 1313(I)(a)(1)[FR22(I)(a)(1)] of the IREC, Vol.-II, within a period of one month from the date of issue of the order.

9. The above order would be subject to following:

- (i) final outcome of the W.P.(C) No.4530/2019 (Sanjay Gauri and Ors. Vs. UOI & Ors.) and W.P.(C) No. 5420/2019 (N.K. Sharma & Ors. Vs UOI & Ors.) filed in the Hon'ble High Court of Delhi;
- (ii) further orders that may be passed by the Hon'ble Supreme Court of India in the Jarnail Singh batch of cases [Civil Appeal No.629 of 2022 arising out of SLP(C) No.30621/2011].

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06/11/25

(Ashok Kumar)
Under Secretary(Estt.)-III
Railway Board

Copy to:-

1. PSOs/Sr. PPSs/PPSs/PSs to CRB & CEO, Secy., PED/Vig., EO, JS(G), JS, EDE(Res.), Dir.(Estt.), DS(A), DS(G), US(Conf.), US(D), Railway Board.
2. The Pay & Accounts Officer, Railway Board.
3. Cash-I, G(Acc) Branches Railway Board.
4. The General Secretary, Railway Board Secretariat Service Group 'A' Officers' Association, Rail Bhavan, New Delhi.
5. Officers concerned.
